

hold plea between party and party, &c. unless both parties, or one of them, *tanta paupertate sunt gravati*, that they cannot sue at the common law: and in that case the plaintiff was a knight, and sheriff, and a man of great ability.

2. By that suit the King was deceived of his fine, for he ought to have had 200l. fine, because that the damages amounted to 4000l. and that was one of the causes that the sheriff began his suit there, and not at the common law: another cause was, that their decrees which they take upon them are final and uncontrollable, either by error, or any other remedy. And yet the President is a nobleman, but not learned in the law; and those which are of the Council there, although that they have the countenance of law, yet they are not learned in the law; and nevertheless they take upon them final and uncontrollable decrees in matters of great importance; for if they may deny relief to any at their pleasure without controulment, so they may do it by their final decrees without error, appeal, or other remedy; which is not so in the King's Courts where there are five Judges; for they can deny justice to none who hath right, nor give any judgment, but the same is controulable by a writ of error, &c. [32] And if we shall not grant prohibitions in cases where they hold plea without authority, then the subjects shall be wrongfully oppressed without law, and we restrained to do them justice: and their ignorance in the law appeareth by their allowance of that suit, *scil.* that the one executor had no remedy by the common law, because the other would not join in suit with him at the common law; whereas every one learned in the law knoweth, that summons and severance lieth in any suit brought as executors; and this also in that particular case was affirmed by the Lord Chancellor; and he much inveighed against actions brought there upon trover and conversion, and said, that they could not be found in our ancient books.

Another prohibition I confess we have granted, between the Lord Wharton, who by English bill sued before the Council, Banks, Buttermere, and others, for fishing in his several fishings in Darwent in the county of C. in the nature of an action of trespass at the common law, to his damage of 200l. And for the causes next before recited, and because the same was merely determinable at the common law, we granted a prohibition; and that also was allowed by the Lord Chancellor. And as to the case of information upon the riotous rescous. I having forgotten to speak to that, the King himself asked what the case was? To whom I answered, that the case was, that one exhibited a bill there in the nature of an action of debt, upon a *mutuatus* against Watson, who upon his oath affirmed, that he had satisfied the plaintiff, and that he owed him nothing; and yet because the defendant did not deny the debt, the Council decreed the same against him, and upon that decree the pursuivant was sent to arrest the said Watson, who arrested him, upon which the rescous was made; and because that the suit was in the nature of an action of debt upon a *mutuatus* at the common law, and the defendant at the common law might have waged his law, of which the defendant ought not to be barred by that English bill, *quia beneficium juris nemini est auferendum*: the prohibition was granted; and that was affirmed also by the Lord Chancellor; whereupon I concluded, that if the principal cause doth not belong unto them, all their proceedings were *coram non judice*, and then no rescous could be done: but the Lord Chancellor said, that though the same cannot be a rescous, yet it was a riot, which might be punished there; which I denied, unless it were by course of law by force of a commission of oyer and terminer, and not by an English bill: but to give the King full satisfaction in that point, the truth is, the said case was debated in Court, and the Court inclined to grant a prohibition in the said case: but the same was stayed to be better advised upon, so as no prohibition was ever under seal in the said case.

Also I confess, that we have granted divers prohibitions to stay suits there by English bill upon penal statutes; for the manner of prosecution, as well for the action, process, &c. as for the count, is to be pursued, and cannot be altered, and therefore without question the Council in such cases cannot hold plea, which was also affirmed by the Lord Chancellor. And I said, that it was resolved in the reign of Queen Elizabeth in *Parol's case*, and now lately in the case of *The President and Council of Wales*, that no Court of Equity can be erected at this day without Act of Parliament, for the reasons and causes in the report of the said case of Parot.

And the King was well satisfied with these reasons and causes of [33] our